PURCHASE ORDER

GMR Air Cargo and Aerospace Engineering Ltd

Mail Invoices To : GMR Air Cargo and Aerospace Engineering Ltd
Plot No. 01, GMR Aerospace Park,,
GMR Hyderabad Aviation SEZ LTD, RGIA,
Shamshabad,
Hyderabad,TELANGANA,500108,
India

Phone : +91 40 67251000

Fax # : +91 40 67251010

Website : http://www.gmraerotech.in

Purchase Order # : 2S0000230520

Amendment # : 0

THIS NUMBER MUST APPEAR ON ALL INVOICES, PACKING SLIP, PACKAGES & CORRESPONDENCE.

Vendor/ Supplier/ Service Provider NIHVA TECHNOLOGIES PVT LTD

187, G-BLOCK, THERMAX CHOWK,
ABOVE RENAULT SHOW ROOM,
MIDC CHINCHWAD,
PUNE,MH,
INDIA,411019

Services to be Provided to : GMR Air Cargo and Aerospace Engineering Ltd GST : 36AACCD8269K5Z2 Plot No. 1 C/o GMR Hyderabad Aviation SEZ Ltd Rajiv Gandhi International Air Port, Shamshabad, Hyderabad,Telangana, India 500108

Contact Person : VIJAY TARAK

Phone : 022 660304033

Fax # :

E-Mail : sales@nihva.com

SUPPLIER #	PO DATE	SHIP BY	QUOTATION #	INCO TERM	CURRENCY	PAY TERM
GMR0048	15/05/2020	ROAD		EXW	INR	N-30

BUYER	E-MAIL	PHONE	APPROVED BY
Navita Jaiswal	Navita.Jaiswal@GMRAEROTECH.IN	FAX:	Vandana Rao

LINE#	PART #	PART DESCRIPTION	DUE DATE CERT TYPE	QTY	UOM	UNIT COST	ITEM TOTAL
1	GMR0562	SERVICING OF PAINT HANGAR DOORS	16/05/2020	4.00	EA	216692.50	866770.00

Remarks

S-2019-394, AMC for Mega Door - Paint Hanger for a period of 3 years, every year order will be released, due to price hike. Payment Terms- Within 30 days after visit. Quarterly visit.

THIS ORDER IS EXPRESSLY MADE AND ITS ACCEPTANCE IS EXPRESSLY LIMITED TO THE TERMS AND CONDITIONS CONTAINED HEREIN AND ATTACHED TO LAST PAGE

AUTHORIZED SIGNATURE

SUBTOTAL:	866770.00
ADDL CHARGES :	
TOTAL:	866,770.0

Legend :QTY.:-Quantity, UOM:-Unit Of Measurement , CERT TYPE:-Certificate Type

Terms and Conditions

GMR Air Cargo and Aerospace Engineering Ltd is hereinafter termed "GACAEL". The person, Firm or Company undertaking the Repair, Overhaul, Rectification Modification, Testing or supplying the ods is hereinafter termed as the "Supplier".

1. ACCEPTANCE / ACKNOWLEDGEMENT
Acceptance of this Order is to be acknowledged by Supplier via email to corresponding buyer.

Supplier to inform GACAEL immediately of inability to supply any of the items ordered or render services required. Acknowledgement of this Order shall be made within 3 business days after acceptance of this Order. Upon acknowledgement, the Supplier is deemed to have agreed with the general terms and conditions of this Order.

2. CHANGES IN SPECIFICATIONS
No change to or amendment of the items appearing on this Order or any of its terms or conditions shall be binding upon GACAEL unless expressly agreed to in writing by GACAEL.
Supplier shall within a reasonable time notify GACAEL in the event that any ods or services the subject of this Order are affected by changes in drawings, designs or specifications effective or impending at the time of receipt by Supplier of this Order, but Supplier shall not without the prior written approval of GACAEL incorporate any such changes in this Order.

NO PMA PARTS (THIS INCLUDES ANY KIND OF PART#S AND ASSOCIATED CERTS ANYWHERE "PMA" WORD IS MENTIONED) WILL BE SUPPLIED WITHOUT PRIOR APPROVAL. IF WE RECEIVE SUCH PARTS BY SURPRISE IN RECEIVING WILL BE REJECTED AND RETURNED BACK AT SUPPLIER COST.

NO PMA PARTS WILL BE SUPPLIED WITHOUT PRIOR APPROVAL. IF WE RECEIVE THE PARTS BY SURPRISE IN RECEIVING WILL BE REFUNDED AT SUPPLIER COST.

Supply of any alternate parts to the ordered part numbers should have proper supporting certificates.

3. QUANTITY
No quantity over and above that is called for on this Order will be accepted without written authority from GACAEL. Freight incurred for items returned will be debited to the Supplier.

4. PRICE
ALL PRICES SHALL BE REGARDED AS EX-WORKS and inclusive of all dues and charges legally payable by GACAEL to Supplier in respect of the ods or services and Installation. Any taxes payable by GACAEL to Supplier in respect of the ods or services, the subject of this Order, shall be separately itemized on Suppliers acknowledgement of the Order and subsequently itemized on the Suppliers invoice.

5. BEYOND ECONOMICAL REPAIR
For Repair/Overhaul/Rectification, if the cost exceeds 65% of a new unit, prior approval must be obtained from GACAEL Deputy General Manager-Purchase before commencing work.

6. CANCELLATION
i) If Supplier refuses or fails to make delivery of any ods per this Order within the time specified herein or any extension thereof agreed to by GACAEL, then GACAEL may by written notice to Supplier cancel this order without penalty as to any ods then undelivered or services not rendered.

ii) GACAEL reserves the right to cancel this Order or any part thereof effective immediately upon notification and GACAEL shall not be liable for any consequences thereof.

7. PACKING
All packing shall be at Supplier's expense unless otherwise agreed to by GACAEL and must be in conformity with GACAEL instructions. Packages containing ods for export must be marked externally "For Export" and show GACAEL Order Number and packing should meet airworthiness requirement and as per the standards.

8.DOCUMENTS
A. To Freight forwarder:
All mandatory documents to be handed over to our freight forwarder rep. while pick up.
I. Original commercial invoice hard copy duly signed. Exactly inline with our PO for part number, PO quantity and PO price & UOM. If any deviation to PO, please highlight to buyer before shipment to review and correct.
II. Original Packing list hard copy duly signed. Exactly inline with invoice details (Part number, Part Description, Quantity Invoiced).
B. Inside Shipment:
All mandatory documents/certificates must be put inside shipment package.
I. Copy of above commercial invoice duly signed along with the shipment.
II. Supplier certificate of conformity (Not Conformance), must be signed by your QA Manager.
III. Original hard copy or certified copy of the manufacturer certificate (must be signed by manufacturer QA Manager).
IV. Back to birth certificate from manufacturer to the end supplier from whom you are buying this product for GMR. (must be signed by concerned QA Manager).
V. Test reports, Specs data, Interchangeability proof, Shelf life detail, MSDS as applicable.
C. To Purchasing Buyer (as mentioned in PO):
I. Another signed hard copy of commercial invoice to be despatched / couriered to purchasing buyer.

9. RECORDS RETENTION
I .Right of access by the organization, their customer, and authorities to the applicable areas of all facilities, at any level of the supply chain, involved in the order and to all applicable records
J. Specific authority approval requirement;
K. Format and content of the supplier's delivery documentation package; and
L.Conditions under which product malfunctions, defects, and unairworthy conditions have to be reported and dispositioned.

10. INSURANCE
For EXWGACAEL is responsible for insurance.
For CIF Supplier is responsible for insurance.

11. DUTY
All ods from Great Britain shall be "VAT Zero Rated" and if required, GACAEL shall provide export documents in this respect.
All ods purchase from USA are for export to India and therefore, US State and Federal Taxes must be complied.

12. INSPECTION AND CERTIFICATION
The ods as per this Order will be subject to final inspection and acceptance by GACAEL upon arrival at their destination. Any ods which do not comply with this Order or which contain defective material or workmanship may be rejected by GACAEL irrespective of date of acceptance or payment thereof. GACAEL may hold for Supplier's instruction any ods so rejected or may return them to Supplier at Supplier's expense.

13. WARRANTY
All ods that fail within the warranty period shall be replaced by Supplier. In the case of the overhauled components /equipment that fail within the said period, GACAEL shall have the option of having the same overhauled again by the Supplier at no extra charge, or to claim from the Supplier the costs incurred should the failed component/equipment be sent to a third party to be overhauled. Freight incurred to and from Supplier's facilities for items returned due to discrepancies or warranty will be debited to Supplier

14. COMPLIANCE WITH LAWS
Supplier agrees to comply with all laws and orders, applicable to the execution of this Order.

15. PATENT PROTECTION
Supplier shall indemnify GACAEL in respect of all proceedings, claims and liabilities and all expenses and cost incidental thereof by reason of any actual and alleged infringement.

16. CONFIDENTIAL
Except as may be necessary for the purpose of fulfilling this Order, Supplier shall not disclose any information concerning this Order to any third party without first obtaining the written consent of GACAEL.

17. ADVERTISING
The Supplier shall not without prior consent of GACAEL advertise or announce or allow to be advertised or announced that the ods of the description mentioned in this Order has been supplied or rendered to GACAEL.

18. DISPOSAL INSTRUCTIONS
All components/equipment found beyond economical repair are to be referred to GACAEL for disposal instructions.

19. SPECIAL ORDER CONDITIONS
A. All materials to have 75 % shelf-life available at date of delivery to FOB point. Packing list should state full shelf life period and date of manufacture of each item. Where shelf life is indefinite, please indicate. Certain material are subject to Part 1, Section IV of the IATA restricted articles regulations, example flammables, corrosive, poisons, etc. to comply with these regulations, please complete the shippers form and return to our freight forwarder with copy of packing list attached to out side of packages.
B. All ‘O’ rings are to be individually packed.
C. Unless other wise specified, the contents of this order are to be shipped in Catery 2 containers in accordance with ATA Spec 300 section 2 at no additional charge.
D. Shipment of sheet metal, metal tubing’s and bars, except stainless steel must be protected by lubricating corrosive inhibitor and to be inserted in between sheets with wax paper or vapour phase inhibitor (VP) paper to prevent scratches and corrosion. Likewise, all stainless steels must be well protected to prevent scratches.

20. INSTRUCTIONS
1. Release Notes or Certificates required with the item:
1.1 Class 1 Items (Aircraft engines and Propellers) New Items: EASA Form1/FAA 8130-3 /CA form 1/Dual certification /TCCA Form one Over Hauled/Repair Items: EASA Form1/FAA 8130-3/CA form1/ TCCA Form one/Dual certification with TSO and CSO as applicable
1.2 Class 2 Items (Components, accessories, Electrical, radio equipment of A/C and Engines) New Items: EASA Form1/FAA 8130-3/CA form 1/Dual certification /TCCA Form one Over Hauled/Repair Items: EASA Form1/FAA 8130-3/CA form1/TCCA Form1/Dual certification with TSO and CSO as applicable
1.3 Class 3 -1 items (Expendables and Raw Materials) C of C issued by approved manufacturer of part EASA Form1 /FAA 8130-3/ CA form1/ TCCA Form one as applicable Material Test Report
1.4 Class 3-2 Consumables Certificate of Conformity/analysis issued by approved Manufacturer/Part 145 approved organization or regulatory Authority approved storage and distribution Organization MSDS (Mandatory)
1.5 Flammability Test Reports for all Fabric and other material subject to FAR25.853 and FAR25.855
1.6 Calibration Certificates required for all items which require Calibration
1.7 All the consumables /expendables supplied should have minimum shelf life of 80% without fail
2. Mark All Packages:
ATTN: Manager –Purchase,
GMR Air Cargo and Aerospace Engineering Ltd.
Plot No. 1, C/O GMR Hyderabad Aviation SEZ Ltd.
Rajiv Gandhi International Airport, Shamshabad
Hyderabad – 500108, Telangana India
3. Should not handover shipment to Freight Forwarder without GACAEL approval
4. Our company is exempted from payment of all taxes & duties. Accordingly your invoice to our company should apply nil taxes

SUPPLIER CODE OF CONDUCT & BUSINESS ETHICS

GMR Group is commited to its Values & Beliefs and business practices to ensure that companies and Suppliers, who supply goods, materials or services, will also comply with these principles

a. Bribery and Corruption Suppliers are strictly prohibited from directly or indirectly (through itermediaries or sub contractors) offering any bribe or undue gratification in any form to any person or entity and / or indulging in any corrupt practice in order to obtain or retain a business or contract

b. Integrity, Indemnity & Limitation Suppliers shall maintain high degree of integrity during the course of its dealings with business / contractual relationship with GMR Group. If it is discovered at any time that any business / contract was procured by playing fraud or misrepresentation or supression of material facts, such contract shall be voidable at the sole option of the relevant entity of GMR Group. For avoidance of doubts, no rights shall accrue to the supplier in relation to such business / contract and GMR Group or any entity thereof shall not have or incur any obligation in respect thereof. The supplier shall indemnify the GMR Group in respect of any loss or damage suffered by GMR Group on account of such fraud, misrepresentation or suppression of material facts.

c. Reporting Misconduct Suppliers are required to report, any misconduct / violations / improper demands from GMR employees, to the Ombudsman person / agency appointed by GMR Group. If you have any complaints about compliance or ethics issues, while working for or with GMR or want to report illegal / unethical activities, you may address the same through any of the following mode

1. Dialing a Toll Free Number, 1800-1020-467, operational from 7AM to 11PM IST on all working days of Operation by selecting an appropriate language option.
2. Sending FAX by choosing option 2 after dialing the above number
3. Email to gmr@ethicshelpline.in
4. Writing a postal mail to PO Box No 71, DLF Phase 1, Qutub Enclave, Gurgaon - 122002

Communication shall be encouraged to any other authority / external sources.